LAWS2100 Jurisprudence
LAWS8005 Theories of Law and Justice

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Week 5 – Dworkin's Interpretive Theory of Law



Ronald Dworkin (1931 – 2013)



- Professor of Jurisprudence, University of Oxford (1969–98)
- *Taking Rights Seriously* (1977)
- *A Matter of Principle* (1985)
- *Law's Empire* (1986)
- *Justice for Hedgehogs* (2011)
- N. Stavropoulos, "Legal Interpretivism", *The Stanford Encyclopedia of Philosophy* (Spring 2021 Edition), Edward N. Zalta (ed.), URL = https://plato.stanford.edu/archives/spr2021/entries/law-interpretivist/

Taking Rights Seriously (1977)

- Ronald Dworkin's book defends a liberal theory of law
- Dworkin is critical of another liberal theory, which he calls "the ruling theory of law"
- According to Dworkin, the ruling theory of law has two parts, which derive from the philosophy of Jeremy Bentham:
  - A theory about **what law is** (i.e., legal positivism)
  - A theory about **what law ought to be** (i.e., utilitarianism)
- Dworkin's book criticises both parts of the theory + the assumption that they are independent of one another
- **For Dworkin, a general theory of law must be normative as well as conceptual**

Dworkin on legal positivism

"**The most powerful contemporary version of positivism is that proposed by H.L.A. Hart**, and it is Hart's version which is criticized in this book."

(R. Dworkin, *Taking Rights Seriously*, Duckworth, 1977, p. ix)

"Legal positivism rejects the idea that *legal rights* can pre-exist any form of legislation…" (Ibid., p. xi)

"Legal positivism […] is the theory that individuals have *legal rights* only insofar as these have been created by explicit political decisions or explicit social practice." (Ibid., p. xii)

The Model of Rules I (1967)

"**I want to examine the soundness of legal positivism, particularly in the powerful form that Professor H.L.A. Hart has given to it**. I choose to focus on his position, not only because of its clarity and elegance, but **because here, as almost everywhere else in legal philosophy, constructive thought must start with a consideration of his views**."

(R. Dworkin, *Taking Rights Seriously*, Duckworth, 1977, p. 16)

According to Dworkin, these are the key tenets of legal positivism:

- Legal rules can be identified in light of their *pedigree*
- There are case in which judges must exercise *discretion*
- *Legal obligation* if and only if the case falls *under a valid legal rule*

Rules, Principles, and Policies

"I want to make a general attack on positivism […] My strategy will be organized around the fact that **when lawyers reason or dispute about legal rights and obligations** […] **they make use of standards that do not function as rules**, but operate differently as **principles, policies, and other sorts of standards**. Positivism, I shall argue, is a model of and for a system of rules, and its central notion of a single fundamental test for law forces us to miss the important roles of these standards that are not rules."

(R. Dworkin, *Taking Rights Seriously*, Duckworth, 1977, p. 22)

→ What is the difference between these standards?

Principles vs. Policies

- Principle: “…standard that is to be observed, not because it will advance or secure an economic, political, or social situation deemed desirable, but because it is **a requirement of justice or fairness or some other dimension of morality**.” (R. Dworkin, *Taking Rights Seriously*, Duckworth, 1977, p. 22)
- Policy: “…standard that sets out **a goal to be reached**, generally an improvement in some economic, political, or social feature of the community (though some goals are negative, in that they stipulate that some present feature is to be protected from adverse change). (Ibid., p. 22)
- Example: “…the standard that automobile accidents are to be decreased is a policy, and the standard that no man may profit by his own wrong a principle.” (Ibid., p. 22)

Legal principles vs. Legal rules

"**The difference between legal principles and legal rules is a logical distinction**. Both sets of standards point to particular decisions about legal obligation in particular circumstances, but they differ in the character of the direction they give." (R. Dworkin, *Taking Rights Seriously*, Duckworth, 1977, p. 24)

- **A rule is applicable in an all-or-nothing fashion**, whereas a principle states a reason that argues in one direction
- **Principles have the dimension of weight/importance**, whereas rules do not have this dimension (consider what happens when principles conflict)

→ It is not always clear from the form of a standard whether that standard is a rule or a principle

Dworkin on discretion

- “The concept of discretion is at home in only one sort of context; when someone is in general charged with making decisions subject to standards set by a particular authority.” (R. Dworkin, *Taking Rights Seriously*, Duckworth, 1977, p. 31)
- “**Discretion, like the hole in a doughnut, does not exist except as an area left open by a surrounding belt of restriction**.” (Ibid., p. 31)
- Discretion in a wick sense

➢ “**Sometimes we use ‘discretion’ in a weak sense**, simply to say that […] the standards an official must apply cannot be applied mechanically but demand the use of judgment” (Ibid., p. 31)

➢ “**Sometimes we use the term in a different weak sense**, to say only that some official has final authority to make a decision and cannot be reviewed and reversed by any other official” (Ibid., p. 32)

Dworkin on “strong” discretion

“**We use ‘discretion’ sometimes** not merely to say that an official must use judgment in applying the standards set him by authority, or that no one will review that exercise of judgment, but **to say that on some issue he is simply not bound by standards set by the authority in question**” (R. Dworkin, *Taking Rights Seriously*, Duckworth, 1977, p. 32)

→ “Do the principles judges cite in cases like *Riggs* or *Henningsen* control their decisions, as the sergeant’s orders to take the most experienced men or the referee’s duty to choose the more aggressive fighter control the decisions of these officials? **What arguments could a positivist supply to show that they do not?**” (Ibid., p. 34)

Riggs v Palmer

- On 13th August 1880, **Francis B. Palmer made his last will and testament, in which he gave small legacies to his two daughters**, Mrs. Riggs and Mrs. Preston, the plaintiffs in this action, **and the remainder of his estate to his grandson, the defendant, Elmer E. Palmer**…
- The testator at the date of his will owned a farm and considerable personal property. […] At the date of the will, and, subsequently, to the death of the testator, **Elmer** lived with him as a member of his family, and at his death was sixteen years old. He knew of the provisions made in his favor in the will, and, that he might prevent his grandfather from revoking such provisions, which he had manifested some intention to do, and to obtain the speedy enjoyment and immediate possession of his property, he **willfully murdered him by poisoning him**.
- **Elmer Palmer now claims the property**, and the sole question for our determination is, can he have it?
- Francis Palmer, the testator is dead; his will was made in due form and has been admitted to probate; therefore, it must have effect **according to the letter of the law**.

Riggs v Palmer (cont.)

- It is quite true that statutes regulating the making, proof and effect of wills, and the devolution of property, if literally construed, and if their force and effect can in no way and under no circumstances be controlled or modified, give this property to the murderer.
  - However, it is a familiar canon of construction that a thing which is within **the intention of the makers of a statute** is as much within the statute as if it were within the letter; and a thing which is within the letter of the statute is not within the statute, unless it be within the intention of the makers.
  - Besides, all laws as well as all contracts may be controlled in their operation and effect by general, **fundamental maxims of the common law**.

Riggs v Palmer

- Rational/equitable construction
- Fundamental maxims of the common law (No one shall be permitted to profit by his own fraud, or to take advantage of his own wrong, or to found any claim upon his own iniquity, or to acquire property by his own crime) – general principles of natural law and justice
- Our attention is called to Owens v. Owens (100 N. C. 240), as a case quite like this
- We are bound by the rigid rules of law, which have been established by the legislature
- We cannot find any support for the argument that the respondent's succession to the property should be avoided because of his criminal act, when the laws are silent
- But more than this, to concede appellants' views would involve the imposition of an additional punishment or penalty upon the respondent

Dworkin's key move

Fundamental question to ask in light of, e.g., *Riggs* and/or *Henningsen*:

→ <u>What is the role played by principles in reaching particular decisions of law?</u>

- **We might treat legal principles the way we treat legal rules and say that some principles are binding as law** and must be taken into account by judges and lawyers who make decisions of legal obligation

- We might deny that principles can be binding the way some rules are. We would say, instead, that in cases like *Riggs* or *Henningsen* the judge reaches beyond the rules that he is bound to apply (reaches, that is, beyond the "law") for extra-legal principles

Dworkin on *legal* principles

According to Dworkin, we cannot adapt Hart's version of positivism by modifying his rule of recognition to embrace principles. This is because we cannot formulate a test of pedigree to capture principles.

"**If we treat principles as law we must reject the positivists' first tenet**, that the law of a community is distinguished from other social standards by some test in the form of a master rule. **We have already decided that we must then abandon the second tenet** – the doctrine of judicial discretion – or clarify it into triviality. **What of the third tenet, the positivists' theory of legal obligation?**"

(R. Dworkin, *Taking Rights Seriously*, Duckworth, 1977, p. 44)

Dworkin on *lega*l obligation

For Dworkin, legal positivists hold the view that "…a legal obligation exists when (and only when) an established rule of law imposes such an obligation. **It follows from this that in a hard case – when no such established rule can be found – there is no legal obligation until the judge creates a new rule for the future**." (R. Dworkin, *Taking Rights Seriously*, Duckworth, 1977, p. 44)

According to Dworkin, if we abandon the positivist doctrine of (strong) discretion and treat principles as law, "…**we raise the possibility that a legal obligation might be imposed by a constellation of principles as well as by an established rule**. We might want to say that a legal obligation exists whenever the case supporting such an obligation, in terms of binding legal principles of different sorts, is stronger than the case against it." (Ibid., p. 44)

The Model of Rules II (TRS)

Dworkin on the nature of law…

"Most legal philosophers have tried to answer this question **by distinguishing the standards that properly figure in arguments on behalf of legal rights and duties**." (R. Dworkin, *Taking Rights Seriously*, Duckworth, 1977, p. 68)

What if we cannot identify an exclusive list of standards?

"**My point was not that 'the law' contains a fixed number of standards, some of which are rules and other principles**. Indeed, I want to oppose the idea that 'the law' is a fixed set of standards of any sort" (Ibid., p. 76)

Hart's *Postscript*

1. The Nature of Legal Theory

- A theory of what law is which is both general and descriptive…" (CL, 239)

2. The Nature of Legal Positivism

- Hart's soft/inclusive legal positivism

3. The nature of Rules

4. Principles and the Rule of Recognition

5. Law and Morality

- "According to my theory, the existence and content of the law can be identified by reference to the social sources of law (e.g. legislation, judicial decisions, social customs) without reference to morality except where the law thus identified has itself incorporated moral criteria for the identification of the law" (CL, 269)

6. Judicial Discretion

Hart's Inclusive Legal Positivism

- Inclusive/Soft Legal Positivism
- Exclusive/Hard Legal Positivism

→ Does law necessarily set moral tests for legal validity?

- According to inclusive legal positivists (e.g., Hart) particular legal systems may make moral criteria necessary or sufficient for legal validity (in that system only)
- According to exclusive legal positivists (e.g., Raz) moral criteria can be neither sufficient condition nor necessary conditions for legal validity

Legal disagreements (*Law's Empire*)

"Lawsuits always raise, at least in principle, three different kinds of issues: **issues of fact, issues of law, and the twinned issues of political morality and fidelity**." (R. Dworkin, *Law's Empire*, p. 3)

1. What happened?
2. What is the pertinent law?
3. If the law denies compensation (for example), is that unjust?

- Empirical disagreement
- **"Theoretical" disagreement about the law**
- Moral disagreement

The disagreement in *Riggs vs Palmer*

- Was Elmer's legally entitled to the inheritance that his grandfather's last will provided?
- **How can judges disagree about what the law is, if the text of the statute is clear?**
- General principles of law → principles of justice assumed elsewhere in the law
- Two reasons: (1) it is sensible to assume that legislators have a general and diffuse intention to respect traditional principles of justice (unless they indicate the contrary); and (2) given that the statute is part of a larger system, it should be interpreted in a way that makes the legal system as a whole coherent in principle

Theoretical disagreement about law (LE)

- Law is a social phenomenon
- **Legal practice** (unlike many other social phenomena) **is argumentative**
- External vs. **Internal perspective on the argumentative aspect of legal practice**
- "**This book takes up the internal, participants' point of view**; it tries to grasp the argumentative character of our legal practice by joining that practice and struggling with the issues of soundness and truth participants face. We will study formal legal argument from the judge's viewpoint…" (R. Dworkin, *Law's Empire*, p. 14)

Constructive interpretation

- Pre-interpretive stage
- Interpretive stage
- Post-interpretive stage

Dworkin's example: the practice of courtesy

→What is the point of a social practice?

→What is the point of the law?

Law as integrity

Integrity → Consistency in principle

- The chain novel (LE, 228)
- Judge Hercules, "…an imaginary judge of superhuman intellectual power and patience who accepts law as integrity" (LE, 239)
- Dimension of fit + Dimension of justification (LE, 255)

Please reflect on:

➢ Dworkin's 'one-right-answer' thesis

➢ Integrity as an interpretative ideal

Cf. John Finnis, 'On reason and authority in Law's Empire' (1987) 6 *Law and Philosophy* 357